

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF KINGS -----X EZRA B. GLASER, Plaintiff, -against- MARION CONDE, a/k/a MARION CONDE DA SILVEIRA, both individually and in her official capacity as Shareholder of 52 KERMIT L.L.C., ERICK HERNANDEZ MATEOS, both individually and in his official capacity as Shareholder of 52 KERMIT L.L.C., ALFRED VINUEZA, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SHAWN O'CONNOR (Shield #21627), individually and in his official capacity as a Police Officer within THE NEW YORK CITY POLICE DEPARTMENT, "JOHN DOES #1-5" (the names being fictitious as their identities are presently unknown) and "JANE DOES #1-5" (the names being fictitious as their identities are presently unknown), Defendants. -----X	<u>SUMMONS</u> Index #: _____/2020 Date of filing: 10/12/2020 Plaintiffs designate: KINGS County as the place of trial Basis of the venue is: Plaintiff's residence
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance upon the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendants' addresses: MARION CONDE a/k/a MARION CONDE DA SILVEIRA Individually and in her official capacity as Shareholder of 52 Kermit L.L.C. 52 Kermit Place, 2nd Floor Brooklyn, New York 11218 ALFRED VINUEZA 52 Kermit Place, 2nd Floor Brooklyn, New York 11218	Plaintiff's Attorney: JOHN K. O'HARA Attorney for the Plaintiff EZRA B. GLASER 579 61st Street Brooklyn, New York 11220 Phone: (718) 439-7861 ohara007@comcast.net
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ERICK HERNANDEZ MATEOS Individually and in his official capacity as Shareholder of 52 Kermit L.L.C. Last-known address: 52 Kermit Place, 2nd Floor Brooklyn, New York 11218 52 KERMIT L.L.C. 52 Kermit Place Brooklyn, New York 11218 THE CITY OF NEW YORK c/o THE NEW YORK CITY LAW DEPARTMENT 100 Church Street New York, New York 10007 THE NEW YORK CITY POLICE DEPARTMENT c/o THE NEW YORK CITY LAW DEPARTMENT 100 Church Street New York, New York 10007 P.O. SHAWN O’CONNOR c/o THE NEW YORK CITY POLICE DEPARTMENT 72nd Precinct 830 4th Avenue Brooklyn, NY 11232 “JOHN DOES #1-5” c/o THE NEW YORK CITY LAW DEPARTMENT 100 Church Street New York, New York 10007 “JANE DOES #1-5” c/o THE NEW YORK CITY LAW DEPARTMENT 100 Church Street New York, New York 10007	
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Dated: October 10, 2020
Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF KINGS -----X EZRA B. GLASER, Plaintiff, -against- MARION CONDE, a/k/a MARION CONDE DA SILVEIRA, both individually and in her official capacity as Shareholder of 52 KERMIT L.L.C., ERICK HERNANDEZ MATEOS, both individually and in his official capacity as Shareholder of 52 KERMIT L.L.C. ALFRED VINUEZA, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SHAWN O'CONNOR (Shield #21627), individually and in his official capacity as a Police Officer within THE NEW YORK CITY POLICE DEPARTMENT, "JOHN DOES #1-5" (the names being fictitious as their identities are presently unknown) and "JANE DOES #1-5" (the names being fictitious as their identities are presently unknown), Defendants. -----X	<u>COMPLAINT</u> Index #: _____/2020
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Plaintiff, **EZRA B. GLASER**, by his attorney, John K. O'Hara, complaining of the defendants herein upon information and belief, respectfully shows to this Court, and alleges as follows:

THE PARTIES

1. At all times hereinafter mentioned, the Plaintiff, EZRA B. GLASER, was and is a resident of the County of Kings, City and State of New York.
2. At all times hereinafter mentioned, the Defendant, MARION CONDE a/k/a MARION CONDE DA SILVEIRA (hereinafter, "MARION CONDE," "Ms Conde" or "Defendant CONDE") was and is a resident of the County of Kings, City and State of New York.
3. At all times hereinafter mentioned, the Defendant, ALFRED VINUEZA was and is a resident of the County of Kings, City and State of New York. At all times hereinafter mentioned, the Defendant, 52 KERMIT L.L.C., was and is a domestic limited liability

corporation, with its designated place of business and/or place for service of process being 52 Kermit Place, Brooklyn, New York.

4. At all times hereinafter mentioned, the Plaintiff, EZRA B. GLASER, was a 50% Shareholder of 52 KERMIT L.L.C. from approximately January 2015 through approximately March 2020.
5. At all times hereinafter mentioned, the Defendant, CONDE, was a 25% Shareholder of 52 KERMIT L.L.C. from approximately January 2015 through approximately March 2020, during the entire period of the events described herein, and became the sole owner of said corporation in March 2020.
6. At all times hereinafter mentioned, the Defendant, ERICK HERNANDEZ MATEOS (hereinafter, “Mr. HERNANDEZ MATEOS” or “Defendant Hernandez deMateos”) was a 25% Shareholder of 52 KERMIT L.L.C. from approximately January 2015 through approximately March 2020, during the entire period of the events described herein.
7. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
9. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintains, controls and manages THE NEW YORK CITY POLICE DEPARTMENT (hereinafter, “NYPD”) a duly authorized government entity or agency authorized to

perform all functions of a police agency or department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

10. At all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, maintains, controls and manages the NYPD, a duly authorized public entity and/or authority pursuant to the laws of the City and State of New York.
11. At all times hereinafter mentioned, the Defendants, SHAWN O'CONNOR (Shield #21627), was and is a police officer and employees of THE NEW YORK CITY POLICE DEPARTMENT, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.
12. At all times hereinafter mentioned, the Defendants, JOHN DOES #1-5 (the names being fictitious as their identities are presently unknown) were and are employees of THE NEW YORK CITY POLICE DEPARTMENT, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.
13. At all times hereinafter mentioned, the Defendants, JOHN DOES #1-5 (the names being fictitious as their identities are presently unknown) were and are employees of THE NEW YORK CITY POLICE DEPARTMENT, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.
14. Prior to the date hereto, on January 15, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the

injuries and damages were sustained, together with Plaintiff's demands for adjustment or payment thereof, was served upon the New York City Comptroller's Office, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof.

15. That no 50-h hearing, pursuant to General Municipal Law, has been held to date. It is further contended that no 50-h hearing is required on the part of the Plaintiff, as this action is being brought pursuant to 42 U.S.C. §1983 based on the violation of the Plaintiff's civil and constitutional rights.

FACTS

16. The incident that is the main subject of this lawsuit is the brutal attack upon the Plaintiff, EZRA B. GLASER, by the Defendant, ALFRED VINUEZA (hereinafter "Mr. VINUEZA" or "Defendant VINUEZA") on October 17, 2019. This attack was the culmination of numerous events where the Defendant, MARION CONDE (hereinafter "Ms. CONDE" or "Defendant CONDE") received notice of the dangerous propensities of Defendant, ALFRED VINUEZA due to numerous incidents at the property of 52 Kermit Place, in Brooklyn, a property owned by 52 KERMIT L.L.C., a corporation that the Plaintiff, EZRA B. GLASER, and Defendants, CONDE and HERNANDEZ MATEOS were Shareholders of.
17. Mr. Alfred VINUEZA moved into the house located at 52 Kermit Place on or about February 2017, less than 6 months after Ms. CONDE's husband, Defendant ERICK HERNANDEZ MATEOS (hereinafter, "Mr. HERNANDEZ MATEOS" or "Defendant, HERNANDEZ DEMATEOS"), who also owned 25% of the corporation and property, attacked Ms. Conde's brother in the backyard of the house while he was

babysitting young children, including the Defendants, CONDE and HERNANDEZ MATEOS's son. Upon information and belief, Mr. Hernandez Mateos moved out virtually on the same day Mr. VINUEZA moved in during or around February 2017. Immediately after moving in, Defendant VINUEZA immediately began claiming ownership to numerous sections of the house and yard, began leaving junk at the front porch and backyard of the house, began parking in the backyard of the house in an area previously rented to others, and began using a washer and dryer that was purchased by the Plaintiff and Ms. Conde located in the downstairs portion of the house during various times.

18. Over time, and despite the protests of the Plaintiff, a disturbing pattern developed in Mr. VINUEZA's threatening activities. He began "stomping" around the backyard on occasions that Mr. Glaser went there, and purposely left specific items immediately adjacent to Mr. Glaser's entrance and in the backyard. Although certain items were removed when specifically requested, Mr. VINUEZA continued to store gym equipment and other rusted or decrepit items in various areas where they continually served as an eyesore.
19. During the Winter of 2018-2019, Mr. VINUEZA left a long-handled axe immediately outside Mr. Glaser's door, near the entrance to his portion of the house. It is the Plaintiff's position that the presence of this axe was purposely placed, specifically with the intention of posing a threat to the Plaintiff.
20. In the meantime, Mr. VINUEZA posted, within the neighborhood of the house, various poster advertisements claiming that he was a professional boxer and physical trainer. One of these postings was placed prominently on a telephone poll directly in front of

the property of 52 Kermit Place. He also posted on a website, Facebook, and other social media sites that he was a professional boxer and physical trainer, as well as an ex-Marine.

21. At two points in the Summer of 2019, Mr. Glaser called the police to inform them that Mr. VINUEZA had threatened him. On the first occasion, Mr. VINUEZA ran directly toward the window of the Plaintiff's bedroom when the Plaintiff complained about him performing automotive work in the backyard. "You come out here," he continually stated. Mr. Glaser did come out of the house near the front door immediately thereafter, while on the phone with "911." During Mr. Glaser's conversation with the "911" operator, the Defendant VINUEZA called Mr. Glaser a "fucking Jew."
22. Within the next two days, Defendant VINUEZA confronted Mr. Glaser in the backyard, as he was going to his car. "Come on, boy," he said, "drop the phone" (thinking Mr. Glaser was videoing or photographing him as he went to his car). He then yelled repeatedly: "I want to shove my big dick up your small-dicked ass." When Ms. Conde came out, she told Mr. VINUEZA not to worry – to stand back, and that she would "beat the shit out of" Mr. Glaser instead, and initiated either feigning or actually attempting to show that she would attack Mr. Glaser in the backyard while Mr. VINUEZA held her.. VINUEZA then started yelling toward Mr. Glaser, the son of a holocaust survivor: "you and your mother should have burned up in the holocaust too." He yelled this out several times and did not stop until an individual from an adjacent building yelled out the window that he, Defendant VINUEZA, must stop his threatening behavior.
23. Other events occurred following the two events detailed within Paragraphs 22-23 and

prior to the attack of October 17, 2020, where Mr. VINUEZA continued to exhibit threatening behavior toward Mr. Glaser. This included a confrontation outside of Mr. Glaser's door, where the Defendant accused Mr. Glaser of stealing a sign from Ms. Conde's portion of the house, and stated that he would kill him if he ever came up the stairs directly outside of the Plaintiff's house. On another occasion, Mr. VINUEZA locked the front door of the house literally seconds after the Plaintiff exited, and then publicly confronted the Plaintiff after the Plaintiff suggested that he might have done this on purpose. This incident was witnessed by numerous members of the community.

24. The foregoing actions of the Defendant, VINUEZA, occurred with the knowledge and consent of the Defendant, CONDE.
25. Upon information and belief, the foregoing actions of the Defendant, VINUEZA, occurred with the knowledge and consent of the Defendant, HERNANDEZ MATEOS.
26. On the morning of October 17, 2019, while the Plaintiff was accessing the trunk/hatchback portion of his automobile, Defendant VINUEZA, while standing outside the passenger portion of his own automobile (between the two vehicles) began uttering: "Come on, boy. Whatcha gonna do." Similar to his prior confrontation with the Plaintiff, Defendant VINUEZA further uttered: "Come on, boy, drop the bag, come on, boy," and repeated similar words several times. Defendant VINUEZA then followed the Plaintiff to the back of the yard, continued to tell Plaintiff to "drop the bag," and ultimately grabbed the Plaintiff by his head while his back was turned and walking away, stood in a pigeon-toed stance over the Plaintiff, and repeatedly punched downward at his face and head numerous times. While he punched downward at the Plaintiff repeatedly, Defendant VINUEZA, attempting to inflict further humiliation,

stated: “get down, boy, get down.”¹ Though his face was severely bruised and bloodied by the beating, the Plaintiff never attempted to throw a single punch during the time Mr. VINUEZA was reigning down punches despite opportunity to do so, thinking he would simply call “911” to have Defendant VINUEZA arrested and permanently removed from the premises. Defendant VINUEZA did not stop his attack until a neighbor from next door ran into the yard, stood in front of Defendant VINUEZA, and insisted that he stop.

27. Four people from the neighborhood, who saw part of the attack called “911.” One neighbor stated that she feared someone (clearly the Plaintiff) would be killed if the police did not come to stop the attack. Mr. Glaser himself called “911” to report the attack.
28. When the police arrived and were speaking to the Plaintiff, Defendant VINUEZA walked up, and apparently attempted to show a bruise on his head, stating Mr. Glaser attacked him between the two cars.² While this initial conversation was taking place with police officers, Defendant CONDE walked up to the police officers and, despite not witnessing any of the events in the backyard, insinuated that the Plaintiff was the initiator of the attack.
29. The Plaintiff was put in handcuffs and placed under arrest while his significant injuries were being attended to inside an EMS ambulance. Defendant VINUEZA was arrested

¹ Mr. Glaser believed, at the time of the attack, that by attempting to force him to the ground, VINUEZA was not only attempting to humiliate him but also, that he intended to kick him throughout the body while he was down.

² The preposterous nature of this position cannot be minimized. The Defendant VINUEZA insinuated that the Plaintiff, an attorney, might have ran into the space between two cars only feet apart to attack Mr. VINUEZA, a purported boxer and ex-Marine without knowing what Mr. VINUEZA might have inside his car – including, as his own Facebook post suggests, might have potentially been a gun.

when police officers spoke to the woman from the next house who stopped Vinueza from continuing his assault, who apparently suggested that Defendant, VINUEZA was the aggressor throughout the attack. However, a fair review of the injuries to Mr. Glaser's face and neck clearly indicate that he was attacked and punched repeatedly. Also, the marks on his neck indicate Defendant VINUEZA was clearly attempting to injure him, choke him or potentially kill him.

30. The Plaintiff was forced to endure the pain and humiliation of being handcuffed to a gurney while in the EMS ambulance (in addition to his other significant injuries), and then, in the Emergency Room of NYU Lutheran Medical Center during hours of treatment and testing. After "release" from the hospital, the Plaintiff was first taken to the 72nd Precinct, where he was processed by the Defendant, SHAWN O'CONNOR (Shield # 21627), and then brought to Central Booking in downtown Brooklyn, where he remained through approximately 12:00 noon on September 18, 2019. The Plaintiff was further forced to endure several hours of being intermittently handcuffed at the 72nd Precinct and during the ride to Central Booking; was handcuffed during various periods at Central Booking, was forced to endure the humiliation of being handcuffed during various times and having prisoners mock him during his incarceration (including in regard to his injuries), was forced into a cramped quarters with several prisoners lying over benches overnight; and was in fear of his life during the time he was incarcerated with other detainees.
31. After his release from Central Booking, the Plaintiff was caused to make two appearances in Criminal Court, where he faced the humiliation of having colleagues see him as a Defendant in a criminal case. The Plaintiff also faced the humiliation of

- having clients and colleagues observe his injuries – particularly to his facial area – for approximately 6 weeks after the attack upon him by the Defendant VINUEZA.
32. The foregoing wanton, reckless and criminal brutal attack by the Defendant VINUEZA upon the Plaintiff was knowingly committed by the aforesaid Defendant with the intention of injuring him.
33. Upon information and belief, the foregoing wanton, reckless and criminal brutal attack by the Defendant VINUEZA upon the Plaintiff was committed with the knowledge and consent of the Defendants CONDE and HERNANDEZ MATEOS.
34. The foregoing false arrest of the Plaintiff was committed with the knowledge, consent, and based on the false claims of the Defendants, CONDE and VINUEZA, after each of said Defendants knowingly provided false information in support of the arrest, when both of the aforesaid Defendants were completely aware that the brutal attack by the Defendant VINUEZA upon the Plaintiff was initiated by Defendant VINUEZA himself.
35. The foregoing false arrest of the Plaintiff occurred as a result of the malicious, negligent, and improper conduct of the Defendant, SHAWN O’CONNOR, and other police officers, who knew or should have known that the malicious, brutal and criminal attack on the Plaintiff, EZRA B. GLASER, was initiated and caused by the Defendant, VINUEZA while the Plaintiff was lawfully on property that he was the co-owner of.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
ASSAULT, BATTERY, HARASSMENT AND OTHER INTENTIONAL ACTS**

36. Plaintiff repeats and realleges all the allegations of paragraphs numbered “1” through “35” as though fully contained herein.
37. That based on the foregoing, Defendant ALFRED VINUEZA did commit an

intentional act to wit: an assault, battery and harassment upon the Plaintiff, EZRA B. GLASER, and that said assault and battery was committed with the witting and/or unwitting knowledge and consent of the Defendants, CONDE and HERNANDEZ DEMATEOS.

38. The Plaintiff, EZRA B. GLASER, was injured due to the negligent, wrongful, reckless and/or wanton actions of the Defendants, VINUEZA, CONDE and HERNANDEZ DEMATEOS.
39. The Defendants, CONDE and HERANDEZ DEMATEOS, had notice of the violent, criminal and reckless propensities of the Defendant, VINUEZA, based on: the leaving of an axe by Defendant, VINUEZA, outside of the Plaintiff's apartment door; the Defendant VINUEZA's "stomping" around the Plaintiff when he was angry; the Defendant's reference to the Plaintiff as a "fucking Jew"; the statements in front of Defendant CONDE that he wished to shove his "big dick" up the Plaintiff's ass and that the Plaintiff and his mother should have "burned up" in the holocaust; and in various additional actions that posed a threat to the Plaintiff.
40. In appearing in the backyard of 52 Kermit Place and harassing the Plaintiff by stating that she would "beat the shit" out of the Plaintiff during the time that Defendant VINUEZA himself had stated that the Plaintiff and her mother should have "burned up" in the holocaust and that he wished to stick his "big dick" up the Plaintiff's ass, the Defendant CONDE offered encouragement for the attack by Defendant VINUEZA upon the Plaintiff of October 17, 2019.
41. Upon information and belief, the Defendant, HERNANDEZ DEMATEOS, had notice of the dangerous propensities of the Defendant, VINUEZA, by definition of the fact

- that he shares custody of his child with Defendant, CONDE, and knew of the fact that Defendant, VINUEZA lived in Defendant CONDE's apartment with their son.
42. By reason of the wrongful, negligent, reckless and unlawful actions of the Defendants, VINUEZA, CONDE and HERNANDEZ MATEOS, the Plaintiff, EZRA B. GLASER, sustained serious, severe, and permanent injuries to his face, neck and upper body, and still suffers and will continue to suffer for some time, great physical and/or emotional pain and serious bodily injury; and that the Plaintiff became sick, sore, lame and disabled and so remained for a considerable length of time as a result of the occurrence.
43. This action falls within one or more of the exceptions set forth in CPLR §1602.
44. That by reason of the foregoing, each of the Defendants are due and owing to the Plaintiff, EZRA B. GLASER an amount exceeding the jurisdiction of all courts lower than the Supreme Court on the First Cause of Action.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
INVOCATION OF THE DOCTRINE OF RES IPSA LOQUITUR

45. The Plaintiff hereby repeats, realleges and reaffirms each and every allegation within the foregoing paragraphs of the complaint, numbered "1" through "44" with the same force and effect as though fully set forth at length herein.
46. The Plaintiff, EZRA B. GLASER,, invokes the doctrine of *res ipsa loquitur*, in that the wanton and intentional attack on the Plaintiff by Defendant VINUEZA would not have occurred "but for" the active or passive negligence of the Defendants, VINUEZA, who viciously, violently, intentionally and criminally did attack the Plaintiff, EZRA B. GLASER, as well as CONDE and HERNANDEZ MATEOS, who knew or should have known of the dangerous propensities of the Defendant, VINUEZA, after giving active or passive consent to his residency at 52 Kermit Place, including his intentional actions.

47. By reason of the wrongful, negligent, reckless and unlawful actions of the Defendants, VINUEZA, CONDE and HERNANDEZ MATEOS, the Plaintiff, EZRA B. GLASER, sustained serious, severe, and permanent injuries to his face, neck and upper body, and still suffers and will continue to suffer for some time, great physical and/or emotional pain and serious bodily injury; and that the Plaintiff became sick, sore, lame and disabled and so remained for a considerable length of time as a result of the occurrence.
48. By reason of the foregoing, the Plaintiff, EZRA B. GLASER, was obligated to and did necessarily employ medical aid, hospital services, medicinal and medical supplies in an attempt to cure the aforesaid injuries, and has been prevented from his usual duties and will be so prevented for a long time to come.
49. This action falls within one or more of the exceptions set forth in CPLR §1602.
50. That by reason of the foregoing, each of the Defendants are due and owing to the Plaintiff, EZRA B. GLASER an amount exceeding the jurisdiction of all courts lower than the Supreme Court on the Second Cause of Action.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

51. That at all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “50” with the same force and effect as if fully set forth herein.
52. That the Defendants, including but not limited to the Defendants CONDE and HERNANDEZ DEMATEOS, failed to exercise reasonable care and diligence in the supervision and screening of guests at the premises of 52 KERMIT L.L.C., in particular, the Defendant VINUEZA.
53. The Defendants, CONDE and HERNANDEZ MATEOS, wittingly or unwittingly aided,

abetted, assisted and/or conspired with the Defendant, VINUEZA, and thus contributed to the attack upon the Plaintiff, EZRA B. GLASER, as well as the concurrent injuries caused by the Defendant, VINUEZA's attack of October 17, 2020.

54. As a result of the negligent, careless and/or reckless conduct of the Defendants, CONDE, VINUEZA and HERNANDEZ MATEOS, and/or each of them, the Plaintiff, EZRA B. GLASER, became, and still remains, sick, sore, lame, bruised, injured and wounded.

55. By reason of the foregoing, the Plaintiff, EZRA B. GLASER, was obligated to and did necessarily employ medical aid, hospital services, medicinal and medical supplies in an attempt to cure the aforesaid injuries, and has been prevented from his usual duties and will be so prevented for a long time to come.

56. This action falls within one or more of the exceptions set forth in CPLR §1602.

57. That by reason of the foregoing, each of the Defendants are due and owing to the Plaintiff, EZRA B. GLASER, an amount exceeding the jurisdiction of all courts lower than the Supreme Court on the Third Cause of Action.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF

58. Plaintiff, EZRA B. GLASER, repeats, reiterates and realleges each of the allegations set forth above, numbered "1" through "57" with the same force and effect as if fully contained herein.

59. The Defendants, CONDE and HERNANDEZ DEMATEOS, had ample or sufficient notice of the Defendant, VINUEZA's dangerous propensities toward others, and specifically, toward the Plaintiff, EZRA B. GLASER, while residents and/or former residents of the premises of 52 Kermit Place, in Brooklyn.

60. That notice of the dangerous propensities of the Defendant, VINUEZA, to the Defendants CONDE and HERNANDEZ DEMATEOS, included: the posting of the existence of a gun underneath the dashboard of his or someone else's vehicle, on his Facebook page; the leaving of an axe outside the Plaintiff's apartment door; threats of violence toward the Plaintiff on various occasions, including those occasions mentioned herein; and specifically, those occasions that the Defendant, VINUEZA, referred to the Plaintiff as a "fucking Jew," stated that he and his mother should have burned up in the holocaust, and stated that he wanted to stick his "big dick" up Mr. Glaser's ass.
61. Upon information and belief, the Defendant, HERNANDEZ DEMATEOS, as the husband of the Defendant CONDE, the mutual parent of his and Defendant CONDE's child, with a 50% custodial arrangement in visitation with their child and as 25% owner of 52 KERMIT L.L.C., knew of, and had communications with Defendant CONDE, regarding the dangerous propensities of her new boyfriend, Defendant ALFRED VINUEZA.
62. The Defendants, CONDE and HERNANDEZ DEMATEOS, had ample or sufficient notice of the dangerous propensities of the assailant, Defendant ALFRED VINUEZA, and that said Defendant was on the premises of 52 Kermit Place and intended to cause harm to residents thereat and/or to the public in general, including the Plaintiff specifically, EZRA B. GLASER.
63. By reason of the encounter or encounters at 52 Kermit Place between the Plaintiff and Defendant, VINUEZA, the Defendants, CONDE and HERNANDEZ DEMATEOS, had sufficient notice as to the fact that the incident of October 17, 2019 was imminent

after the Defendant, VINUEZA, left an axe outside the Plaintiff's door, called the Plaintiff a "fucking Jew," stated that the Plaintiff and his mother should have burned up in the Holocaust, expressed his desire to shove his "big dick" up the Plaintiff's ass, and posted a gun underneath his own or another vehicle's dashboard on his Facebook page.

64. The Defendants, CONDE and HERNANDEZ DEMATEOS, failed to take proper and adequate precautions to protect the public, in general, and specifically, the safety and well-being of the Plaintiff, EZRA B. GLASER.
65. That the Defendants, CONDE and HERNANDEZ DEMATEOS, had opportunity to prevent the attack upon the Plaintiff, EZRA B. GLASER, and failed to take adequate precautions to do so.
66. That by reason of said attack committed by Defendant VINUEZA upon the Plaintiff, with the witting or unwitting knowledge and consent of the Defendants, CONDE and HERNANDEZ DEMATEOS, the Plaintiff was caused to suffer serious personal injuries in and about his face and other areas of the body.
67. That based on the foregoing, and due to the negligent, reckless, wanton and/or willful actions of each and all of the Defendants, VINUEZA, CONDE and HERNANDEZ DEMATEOS, the Defendant, ALFRED VINUEZA, did intentionally commit an assault and battery upon the Plaintiff, EZRA B. GLASER, with the witting or unwitting consent of the Defendants, CONDE and HERNANDEZ DEMATEOS.
68. This action falls within one or more of the exceptions set forth in CPLR §1602.
69. That by reason of the foregoing, each of the Defendants are due and owing to the Plaintiff, EZRA B. GLASER an amount exceeding the jurisdiction of all courts lower

than the Supreme Court on the Fourth Cause of Action.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
FALSE ARREST

70. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “69” with the same force and effect as if fully set forth herein.
71. On October 17, 2019, the Defendants, SHAWN O’CONNOR (Shield #21627), was an employee of the Defendant, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT, and as such, was acting within the scope of his duties at the time of the acts complained of herein.
72. On October 17, 2019, and at all times hereinafter mentioned, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, either personally or through its agents, servants and/or employees, including SHAWN O’CONNOR, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York as well as the direct orders of the Mayor of the City of New York.
73. On October 17, 2019, and at all times hereinafter mentioned, Plaintiff, EZRA B. GLASER, was a detainee of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK at the above-referenced locations.
74. On October 17, 2019, and at all times hereinafter mentioned, each and all of the bad acts perpetrated by officers of the NYPD, as employees of THE CITY OF NEW YORK and the NYPD were performed while acting within the scope of their employment by the defendants, THE CITY OF NEW YORK and the NYPD.
75. On October 17, 2019, and at all times hereinafter mentioned, the Defendant, Police

Officer SHAWN O'CONNOR, "JOHN DOES #1-5" and "JANE DOES #1-5" are or were Police Officers and/or personnel employed by THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT at the time of the events at issue in this lawsuit occurred.

76. On October 17, 2019, and at all times hereinafter mentioned, each and all of the acts of the above-referenced defendants alleged herein, were performed by said defendants while acting in furtherance of their employment by the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
77. On October 17, 2019, respectively, and at all times hereinafter mentioned, the Plaintiff, EZRA B. GLASER, was acting lawfully on the premises of 52 Kermit Place, a property where he had an ownership interest, when he was assaulted, battered, harassed and deprived of his civil and constitutional rights due to the actions of the Defendant, VINUEZA, CONDE and HERNANDEZ DEMATEOS, and ultimately, by members of the NYPD, including SHAWN O'CONNOR, acting under the direction and authority of the Defendants, THE CITY OF NEW YORK, and the NYPD.
78. On October 17, 2019, respectively, and at all times hereinafter mentioned, based on the foregoing occurrences and despite the fact that NYPD officers knew or should have known that the Plaintiff was attacked by the Defendant, VINUEZA, and acted lawfully on the premises of 52 Kermit Place, when he was falsely arrested, placed in handcuffs for extended periods of time, was subjected to extended periods of humiliation and abuse, and deprived of his civil and constitutional rights by the Defendant, SHAWN O'CONNOR, and other members of the NYPD.
79. The false arrest of the Plaintiff was due, in part, to the false and malicious actions of

the Defendants, VINUEZA and CONDE, who acted in concert and provided false information to Defendant, SHAWN O'CONNOR and/or other members of the NYPD.

80. The Defendant, SHAWN O'CONNOR, and/or other members of the NYPD, knew or should have known that the Defendants, VINUEZA and CONDE had provided false information in alleging that the Defendant, VINUEZA, did not initiate the brutal attack on the Plaintiff and that the Plaintiff did not attack VINUEZA between two cars, when the bruising to the Plaintiff's face and simply hearing the "911" calls reasonably should have indicated otherwise to trained police officers.
81. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Fifth Cause of Action.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF

82. Plaintiff, EZRA B. GLASER, repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "81" with the same force and effect as if fully set forth herein.
83. On October 17, 2019 the Plaintiff was purposely, wantonly and brazenly attacked by Defendant VINUEZA with the specific intention of causing him permanent bodily harm. After the attack, SHAWN O'CONNOR and/or other members of the NYPD falsely arrested the Plaintiff after the easily provable false statements made by Defendants VINUEZA and CONDE had been furnished, when they suggested that the Plaintiff had attacked the Defendant VINUEZA when all evidence indicated otherwise.
84. On October 17, 2019 the Plaintiff was handcuffed to a gurney in an EMS vehicle, then at New York Presbyterian Brooklyn Methodist Hospital, a holding cell at the 72nd

Precinct and several holding cells at Brooklyn's Central Booking, and at various times, had his hands cuffed behind his back while experiencing significant pain from having been beaten about the face by Defendant VINUEZA. During such time, the Plaintiff's repeated requests that the police officers either loosen his handcuffs or take them off due to excruciating pain being were wantonly refused or ignored. They also ignored most requests to provide ice to bring down the swelling to his face. This torture was caused, in part, due to the false, malicious, and wantonly reckless statements by Defendants, VINUEZA and CONDE regarding the initiation of the attack, and in part, due to the negligence of the Defendant, SHAWN O'CONNOR and/or other members of the NYPD, who knew or should have known that that statements made to them by Defendants VINUEZA and CONDE were in fact malicious and false.

85. That the forgoing assault, false arrest, physical torture and the violations of the Plaintiff's civil and constitutional rights were committed due the recklessness, carelessness and negligent conduct of the Defendants, VINUEZA, CONDE, SHAWN O'CONNOR, JOHN DOES #1-5 and JANE DOES #1-5, THE CITY OF NEW YORK and the NYPD, their agents, servants and/or employees, who allowed, set up, assisted with, aided and abetted and reinforced the violation of the Plaintiff's civil and constitutional rights during the happening of the aforesaid events of October 17, 2019. Defendants, SHAWN O'CONNOR and/or other police officers and members of the NYPD were acting within the scope of their responsibilities for the Defendants, THE CITY OF NEW YORK and the NYPD, at the time the aforesaid events occurred.
86. The acts complained of were carried out by SHAWN O'CONNOR and/or other police officers in their capacities as police officers under the auspices of the CITY OF NEW

YORK and NYPD with all the actual and/or apparent authority attendant thereto.

87. The acts complained of were carried out by SHAWN O'CONNOR and/or other police officers in their capacities as police officers under the auspices of NYPD and THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, and under the supervision of ranking officers of the NYPD.
88. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented within numerous civil rights actions filed against the NYPD and THE CITY OF NEW YORK.
89. The existence of customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the NYPD constitute a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
90. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the direct and proximate cause of the constitutional violations suffered by the Plaintiff, as alleged herein.
91. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Sixth Cause of Action.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER COLOR OF LAW

92. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "91" with the same force and effect as if fully set forth herein.
93. By reason of the foregoing and the negligent and reckless acts of the aforesaid Defendants,

the Plaintiff, EZRA B. GLASER is informed and verily believes his aforesaid injuries are permanent and that he will permanently suffer from the effects of the aforesaid injuries; and that furthermore, Plaintiff will be caused to suffer permanent embarrassment, emotional suffering and pain as a result of the aforesaid injuries.

94. By reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the Plaintiff, EZRA B. GLASER sustained serious, severe, and permanent injuries to his head and body, and still suffers and will continue to suffer for some time, great physical and/or emotional pain and serious bodily injury.

95. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Seventh Cause of Action.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
UNCONSTITUTIONAL CUSTOMS AND POLICIES

96. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “95” with the same force and effect as if fully set forth herein.

97. At all times hereinafter mentioned, each and all of the aforementioned police officers and/or employees of the NYPD were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the NYPD and the Defendant, THE CITY OF NEW YORK, both entities under the supervision and control of the State of New York.

98. That at all times hereinafter mentioned, each and all of the acts committed by employees of the NYPD and/or THE CITY OF NEW YORK were performed while acting within the scope of their employment with the defendants, the NYPD and and

THE CITY OF NEW YORK.

99. That at all times hereinafter mentioned, each and all of the acts of the above-referenced defendants acting as agents, servants and/or employees of the NYPD or the CITY OF NEW YORK alleged herein, including SHAWN O'CONOR, were performed by said defendant(s) while acting in furtherance of their employment with the Defendants, the NYPD and and/or THE CITY OF NEW YORK.
100. That the acts complained of were carried out by the aforementioned individual police officers in their capacities as NYPD officers, under the auspices of the New York City Police Officers, with all the actual and/or apparent authority attendant thereto.
101. That the acts complained of herein were carried out by the aforementioned individual defendants in their capacities as officers of the NYPD and/or of THE CITY OF NEW YORK, with all the actual, official and/or apparent authority attendant thereto.
102. That the acts complained of were carried out by the aforementioned Police Officers in their capacities as officers of the NYPD and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, all under the supervision of ranking officers the NYPD and/or THE CITY OF NEW YORK.
103. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented within numerous civil rights actions filed against the NYPD and THE CITY OF NEW YORK.
104. The existence of customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK, constituted a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

105. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the direct and proximate cause of the injuries and constitutional violations suffered by the Plaintiff, as alleged herein.
106. As a result of the foregoing, Plaintiff is entitled to compensatory damages in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Eighth Cause of Action.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
PATTERN OF UNCONSTITUTIONAL CONDUCT

107. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “106” with the same force and effect as if fully set forth herein.
108. The Defendants, THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5 collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of the Plaintiff.
109. The Defendants, THE NEW YORK CITY POLICE DEPARTMENT, THE CITY OF NEW YORK, SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5 collectively and individually, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct and were directly responsible for the violation of the Plaintiffs’ constitutional rights.
110. All of the foregoing acts by defendants deprived the Plaintiff of federally protected rights, including, but not limited to:
- i. The right not to be deprived of liberty without due process of law;
 - ii. The right not to have cruel and unusual punishment imposed upon him by

police officers, including but not limited to the torture committed by Defendants, SHAWN O'CONNOR, JOHN DOES and JANE DOES upon the Plaintiff and

- iii. The right to receive equal protection under the law.
- 111. As a result of the foregoing attack false arrest, and the concomitant actions thereto committed upon the Plaintiff, EZRA B. GLASER by the aforementioned police officers and/or other employees of the Defendants, the NYPD and THE CITY OF NEW YORK, this Plaintiff sustained serious and severe injuries to his head and body, and still suffers and will continue to suffer for some time, physical and/or emotional pain.
- 112. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Ninth Cause of Action.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
CONSTITUTIONAL VIOLATIONS UNDER 42 U.S.C. §1983

- 113. That at all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "112" with the same force and effect as if fully set forth herein.
- 114. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.
- 115. All of the aforementioned acts deprived Plaintiff, EZRA B. GLASER of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.
- 116. The acts complained of were carried out by the aforementioned individual Defendant

- police officers, including but not limited to SHAWN O'CONNOR, in their capacities as police officers under the auspices of the NYPD and THE CITY OF NEW YORK, with all of the actual and/or apparent authority attendant thereto.
117. The acts complained of were carried out by the aforementioned individual defendants in their capacities as employees and/or police officers of the NYPD and THE CITY OF NEW YORK pursuant to the customs, usages, practices, procedures, and rules of the NYPD and THE CITY OF NEW YORK, all under the supervision of ranking officers of said department and the Mayor of the City of New York.
118. Each of the individual police officers in this action as Defendants, individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States, and the laws pursuant thereto.
119. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Tenth cause of Action.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

120. At all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "119" with the same force and effect as if fully set forth herein.
121. The Defendants, the NYPD, THE CITY OF NEW YORK, SHAWN O'CONNOR, "JOHN DOES #1-5" and "JANE DOES #1-5," acting in concert with Defendants VINUEZA, acted with intent to do harm to the Plaintiff, EZRA B. GLASER without excuse or justification.

122. As a result of the foregoing, Plaintiff experienced emotional distress in addition to the his sustained physical injuries.

123. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Eleventh cause of Action.

**AS AND FOR A TWELFTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF:
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

124. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through “123” as if the same were more fully set forth at length herein.

125. Each and all of the Defendants deprived the Plaintiff, EZRA B. GLASER of his right to fair trial, by actively participating in, or aiding and abetting in the assault and battery and the deprivation of the Plaintiff’s constitutional rights without affording him any trial whatsoever.

126. Each and all of the Defendants deprived the Plaintiff, EZRA B. GLASER of his constitutional right to be free from cruel and unusual punishment by actively participating in, or aiding and abetting in the assault and battery, torture, purposeful infliction of emotional distress, and the deprivation of the Plaintiff’s constitutional rights as referred to herein.

127. That based on the foregoing, the Plaintiff Demands and amount in excess of the jurisdiction of all courts lower than the Supreme Court on the Twelfth Cause of Action.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF:
MUNICIPAL LIABILITY**

128. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation

set forth above numbered "1" through "127" as if the same were more fully set forth at length herein.

129. The various individual Defendants referred to herein, as Police Officers and/or employees of the Defendants, the NYPD and THE CITY OF NEW YORK assaulted and battered and violated the constitutional rights of the Plaintiff, EZRA B. GLASER notwithstanding their knowledge that their actions would jeopardize the Plaintiff's well-being, safety and constitutional rights.
130. The acts complained of were carried out by the aforementioned individual defendants in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, with all the actual and/or apparent authority attendant thereto.
131. The acts complained of were carried out by the aforementioned individual defendants in their capacity as Police Officers and/or employees of THE NEW YORK CITY POLICE DEPARTMENT and/or THE CITY OF NEW YORK, pursuant to the customs, policies, usages, practices, procedures, and rules of THE NEW YORK CITY POLICE DEPARTMENT and THE CITY OF NEW YORK all under the supervision of ranking officers of said agencies or departments.
132. The aforementioned customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK include, but are not limited to, the following unconstitutional practices:
 - (a) Arresting, attacking, assaulting, battering or torturing an innocent person;
 - (b) Arresting, attacking, assaulting, battering or torturing an innocent person notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing;

- (c) Subjecting an innocent person to assault, attack, battering and torture which fails to conform to fundamental standards of due process as recognized by this and other jurisdictions throughout the United States;
 - (d) Subjecting an innocent person to assault, attack, battering and torture based on the wanton, careless and reckless actions and depraved indifference of Defendants, SHAWN O'CONNOR, JOHN and JANE DOES, and/or other Police Officers.
133. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the direct and proximate cause of the constitutional violations suffered by Plaintiff, EZRA B. GLASER as alleged herein.
134. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were the moving force behind the constitutional violations suffered by the Plaintiff, EZRA B. GLASER as alleged herein.
135. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff EZRA B. GLASER.
136. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and/or employees of the NYPD and THE CITY OF NEW YORK, and were thus directly responsible for the violation of the Plaintiff, EZRA B. GLASER'S constitutional rights.
137. All of the foregoing acts by the defendants deprived the Plaintiff, EZRA B. GLASER of federally protected rights, including, but not limited to, the right:
- i. Not to be deprived of liberty without due process of law;
 - ii. To be free from seizure and arrest not based upon probable cause;
 - iii. To be free from unwarranted and malicious criminal prosecution and/or

abuse of process;

iv. Not to have cruel and unusual punishment, including torture, imposed upon him by depraved officers of the police department; and

v. To receive equal protection under the law.

138. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the Thirteenth Twelfth Cause of Action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF: PENDENT STATE LAW CLAIMS

139. Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered "1" through "138" as if the same were more fully set forth at length herein.

140. Plaintiff brings this pendent state law claim against the Defendants, the NYPD, THE CITY OF NEW YORK, SHAWN O'CONNOR, JOHN DOES #1-5 and JANE DOES #1-5, for the attack, battering, torture, humiliation and violation of the Plaintiff's civil and constitutional rights, or aiding and abetting in said actions.

141. The foregoing attack, assault, battery and torture committed by the aforesaid police officers and/or employees of the NYPD and THE CITY OF NEW YORK against the Plaintiff occurred due to the Defendants' actual malice toward the Plaintiff, EZRA B. GLASER, and the careless, reckless and wanton indifference toward the Plaintiff's well-being by said officers.

142. The Defendant, SHAWN O'CONNOR, and/or other police officers and/or employees of the NYPD, were specifically informed that the notion that the Plaintiff had attacked the Defendant, VINUEZA between two automobiles, and furthermore, based on

- evidence at the scene, including the “911” calls combined to the bruising to the Plaintiff’s face, knew or should have known that the notion that the Plaintiff had attacked the Defendant, VINUEZA between two automobiles was patently absurd.
143. Plaintiff, EZRA B. GLASER was harmed by being attacked, assaulted, battered and tortured by the Defendants. He suffered embarrassment, humiliation, and various physical injuries to his face and body, as well as the loss of his position and good name among his peers.
144. The existence of customs, policies, usages, practices, procedures and rules of the NYPD and THE CITY OF NEW YORK were completely ignored while the Plaintiff’s human and civil rights were violated.
145. As a result of the foregoing, Plaintiff is entitled to compensatory damages in the sum exceeding the jurisdiction of all courts lower than the Supreme Court on the Fourteenth Twelfth Cause of Action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

146. At all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through 145” as if more fully set forth at length herein.
147. The individual Defendants, VINUEZA, CONDE, HERNANDEZ DEMATEOS SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5, by their action, did intentionally commit the tort of intentional infliction of emotional distress upon the Plaintiff with the assault, battery, harassment, false arrest and torture of the Plaintiff, EZRA B. GLASER. Defendants, the NYPD and THE CITY OF NEW YORK, failed to exercise reasonable care and diligence in the selection and hiring of its agents,

servants and employees.

148. By reason of the foregoing, Plaintiff, EZRA B. GLASER was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the Fifteenth Twelfth Cause of Action.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

149. At all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through 148” as if more fully set forth at length herein.
150. The individual Defendants, VINUEZA, CONDE, HERNANDEZ DEMATEOS SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5, by their action, did intentionally commit the tort of negligent infliction of emotional distress upon the Plaintiff with the assault, battery, harassment, false arrest and torture of the Plaintiff, EZRA B. GLASER.
151. By reason of the foregoing, Plaintiff, EZRA B. GLASER was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the Sixteenth cause of action.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF: ABUSE OF PROCESS**

152. At all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through 153” as if more fully set forth at length herein.
153. The individual Defendants, VINUEZA, CONDE, HERNANDEZ DEMATEOS SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5, by their actions, did

- wantonly, maliciously and intentionally commit the tort of abuse of process against the Plaintiff by causing the prosecution against the Plaintiff based on the knowingly false information provided by the Defendants, VINUEZA and CONDE.
154. The criminal prosecution of the Plaintiff resulted in a disposition favorable to Plaintiff. Contrarily, during the course of the prosecution against him, the Defendant, VINUEZA was informed that he was not perceived as a “victim” during the attack on the Plaintiff. The Defendants, VINUEZA and CONDE, acting in concert, caused the prosecution of the Plaintiff, even though said Defendants knew that the charges against him were false, malicious, and completely contrary to the actual events that occurred on October 17, 2019, while the individual Defendants, SHAWN O’CONNOR, JOHN DOES #1-5 and JANE DOES #1-5 should have known that such charges were false.
155. By reason of the foregoing, Plaintiff, EZRA B. GLASER was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the Seventeenth Twelfth Cause of Action.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF: NEGLIGENT HIRING AND RETENTION**

156. At all times hereinafter mentioned, Plaintiff, EZRA B. GLASER repeats, reiterates and realleges each and every allegation set forth above numbered “1” through 155” as if more fully set forth at length herein.
157. The Defendant, the NYPD and THE CITY OF NEW YORK, failed to exercise reasonable care and diligence in the selection and hiring of its agents, servants and employees.

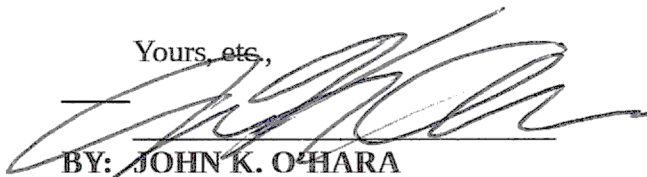
158. The Defendants failed to exercise reasonable care and diligence in the selection, screening, retention, engagement, employment, supervision and training of its agents, servants and employees.

159. By reason of the foregoing, Plaintiff, EZRA B. GLASER was damaged in a sum exceeding the jurisdiction of all courts lower than the Supreme Court on the Eighteenth cause of action.

WHEREFORE, the Plaintiff, EZRA B. GLASER demands judgment in a sum exceeding the jurisdiction of all courts lower than the Supreme Court that would otherwise have jurisdiction on the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, fifteenth, sixteenth, seventeenth and eighteenth causes of action, in addition to punitive damages, plus attorney's fees, costs, and disbursements of this action.

DATED: Brooklyn, New York
October 12, 2020

Yours, etc.,



BY: JOHN K. O'HARA

Attorney for the Plaintiff

EZRA B. GLASER

579 61st Street

Brooklyn, New York 11220

Phone: (718) 439-7861

ohara007@comcast.net

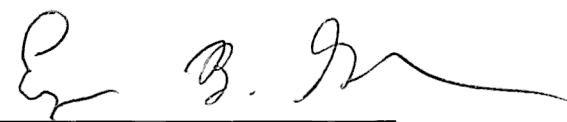
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

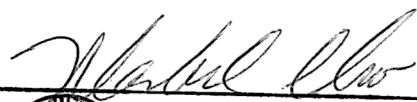
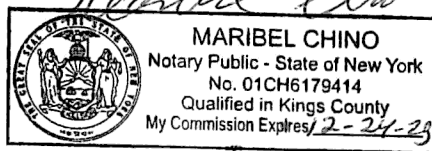
EZRA B. GLASER, the undersigned, residing at 3021 Fort Hamilton Parkway, #2R, Brooklyn, New York, does state the following under the penalties of perjury:

That I am the Plaintiff in the within action; I have read the foregoing VERIFIED COMPLAINT and know the contents thereof; and that the same is true to my own knowledge upon information and belief.

Dated: Brooklyn, New York
October 12, 2020


EZRA B. GLASER, Esq.

On this 12th day of October 2020. Before Me the undersigned, a Notary Public, in and for said state personally appeared Mr. EZRA B. GLASER.

Index #: _____/2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EZRA B. GLASER,

Plaintiff,

-against-

MARION CONDE, a/k/a MARION CONDE DA SILVEIRA, both individually and in her official capacity as Shareholder of 52 KERMIT L.L.C., ERICK HERNANDEZ MATEOS, both individually and in his official capacity as Shareholder of 52 KERMIT L.L.C., ALFRED VINUEZA, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SHAWN O’CONNOR (Shield #21627), individually and in his official capacity as a Police Officer within THE NEW YORK CITY POLICE DEPARTMENT, “JOHN DOES #1-5” (the names being fictitious as their identities are presently unknown) and “JANE DOES #1-5” (the names being fictitious as their identities are presently unknown),

Defendant(s).

-----X
SUMMONS AND COMPLAINT

-----X
JOHN K. O’HARA

Attorney for the Plaintiff

EZRA B. GLASER

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